Factors Influencing Asylum Outcomes in the United States: Preliminary Analysis*†

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Abstract

The COVID-19 pandemic caused a breakdown in countless administrative systems and public resources at its peak, having serious consequences for the people who relied on those systems. However, even in the best of times, the United States asylum process is incredibly long, complicated, and often dangerous. In this project, I consider if the credible fear interview, a critical first step to obtaining asylum in the United States, may have posed an even larger barrier to migrants during the height of the COVID-19 pandemic. This preliminary analysis finds that at the height of the pandemic, asylum seekers were turned away from the asylum process at significantly higher rates than in pre-COVID years. While this analysis can not indicate a causal relationship, it reveals the importance of further investigation into the barriers faced by asylum seekers which may have been exacerbated during the pandemic.

1 Introduction

Serving as a protection for individuals at risk of persecution and torture in their home country, the right to asylum is considered an international human right. As such, the U.S. asylum process is governed by several international laws and conventions including the Convention Against Torture. Many have argued, however, that elements of the U.S. immigration system and asylum process do not hold up to these standards [1]. In many countries, the process to obtain asylum is long, complicated, and sometimes dangerous. After facing dangerous conditions on their journeys preceding their arrival in the United States, asylum seekers are often detained during the process and forced

*To reproduce the results described in this paper, please access the project's repository and code package here: https://github.com/shaylouth/cf-asylum-outcomes.git

†A replication of this preliminary analysis using newly available data from DHS aggregated on a semi-monthly basis is currently underway. See the note about the forthcoming paper in the conclusion for more details.

to navigate complicated legal processes [2]. All of these steps take place in an unfamiliar justice system and language, often with no legal or interpretation assistance provided [3].

A key component of this intimidating process is the credible fear interview. In this interview, asylum seekers must explain to an immigration official why they have a credible fear of persecution or torture that prevents them from returning to their home country. Many factors can influence the outcome of this stage, from immigration policy to the language that a given asylum-seeker speaks. In this project, I explore factors impacting the rate that credible fear is found in U.S. credible fear interviews in the asylum seeking process. This paper presents a preliminary analysis from an early stage of this ongoing project, where I focus on assessing several basic variables in regards to credible fear interview outcomes for asylum-seekers from the top fifteen countries of origin in the U.S. between 2016-2021. These variables include the COVID-19 pandemic, asylum-seeker home country region, and changes to their home country's total global asylum-seeking population. In this project, I consider if the credible fear interview, a critical first step to obtaining asylum in the United States, may have posed an even larger barrier to migrants during the height of the COVID-19 pandemic.

2 Background

Asylum is often confused with other types of U.S. immigration such as refugee entry. The process is quite different, however, most importantly in the fact that asylum can only be given to individuals who are in the U.S. or at a U.S. border. Because asylum is given as a protection against persecution and torture in other countries, the right to asylum is considered an international human right. As such, the U.S. asylum process is governed by several international laws and conventions such as the Convention Against Torture. Many scholars have argued, however, that many elements of the U.S. immigration system and asylum process do not hold up to these standards.

There are two paths to obtaining asylum in the U.S.: affirmative and defensive. Individuals who have resided in the U.S. for less than a year and are not currently subject to removal proceedings are eligible to apply for affirmative asylum. In contrast, defensive asylum is an option claimed by individuals who are to face "expedited removal" from the U.S.. For example, whenever an individual is apprehended by Immigration and Customs Enforcement (ICE) or Customs and Border Patrol (CBP) "within 100 air miles of the U.S. border" or at a U.S. port of entry without legal documents, they are subject to expedited removal [4]. ICE or CBP agents are required to then ask the individual basic questions to screen for an intent to apply for asylum. If an intent to apply for asylum is determined by these agents, the individual begins a process leading to a credible fear interview [5].

The credible fear interview is conducted by an asylum officer in order to assess if an individual has a "credible fear" of persecution or torture if they are to return to their home country. If the individual is found to have a credible fear by the asylum officer, they are then sent to appear in front of an immigration judge who will officially hear their asylum case. Existing literature has documented the many problems that can arise during the credible fear process, particularly in regards to language barriers

and equity in translation access. These barriers range from low-quality interpretation interfering with an individual's ability to explain their stories adequately to more intense language barrier challenges for minority language speakers.

3 Methods

Two key datasets were used to perform this analysis, including first the U.S. Department of Homeland Security's (DHS) data on annual credible fear outcomes among asylum-seekers from the top fifteen countries of origin. This data was combined with UNHCR data on global asylum seeking populations counted by country of origin. In this initial stage, the DHS category for "All Other Nationalities" was dropped, along with the observations in the UNHCR data documenting asylum seeking populations from home countries outside of the DHS's top fifteen. These datasets were merged by country and year to form a strongly balanced panel for the regression.

In addition to the basic datasets, I added a variable to represent pandemic years. One of the next steps for this project is to incorporate data that more accurately represents the varying severity of the pandemic as well as variables representing changes in quarantine policy. For this exploratory analysis, I simply created an indicator variable that represents the years where global COVID-19 deaths were at their highest for the majority of the year *(COVID year = 1 for years 2020 and 2021)*. The model I am estimating with this analysis can be represented as:

$$\begin{aligned} \frac{found}{decided} &= \beta_0 + \beta_1 asylum_seekers + \beta_2 central_america \\ &+ \beta_3 europe + \beta_4 south_america + \beta_5 asia + \beta_6 covid_year \end{aligned} \tag{1}$$

A Hausman test was performed to assess a random effects model compared to a fixed effects model. No significant difference was found between the coefficient estimates of the models, which led me to choose a random effects regression. However, the Hausman test results also noted that this result is not positive definiteness, which may indicate an issue with the data quality or model used at this stage. The R-squared estimates of the random effects regression indicate that the model explains approximately 57% of the overall variation in the data and 66% of the variation within home-country populations over time. Only approximately 27% of the variation between home-country populations was explained, however, this was to be expected given the limited number of country-specific explanatory variables included in this preliminary analysis.

4 Results

The preliminary analysis suggests that the COVID-19 pandemic had an impact on the rate of credible fear being found in the asylum process that was statistically significant at a level of 0.01, as seen in the regression results in Figure 3. The estimated coefficient of this effect was -0.323, suggesting that the pandemic caused a drop in the rate of affirmative credible fear outcomes by more than 30% with a p-value of 0. This effect is also illustrated in Figure 1 and 2, showing the shifts in rates for all three credible

fear outcomes (affirmative/found, not found, and application closed) for all completed DHS cases.

The model also suggests that growth in a home country's global asylum-seeking population might have some positive impact on the affirmative credible fear outcome rate, however, the estimated coefficient is extremely small (1.94e-07) and only significant at a level of 0.10. The estimations on the regional indicator variables were not statistically significant. However, it is likely that a small sample size may be limiting the statistical power of the predictions, given it only represents fifteen countries over six years.

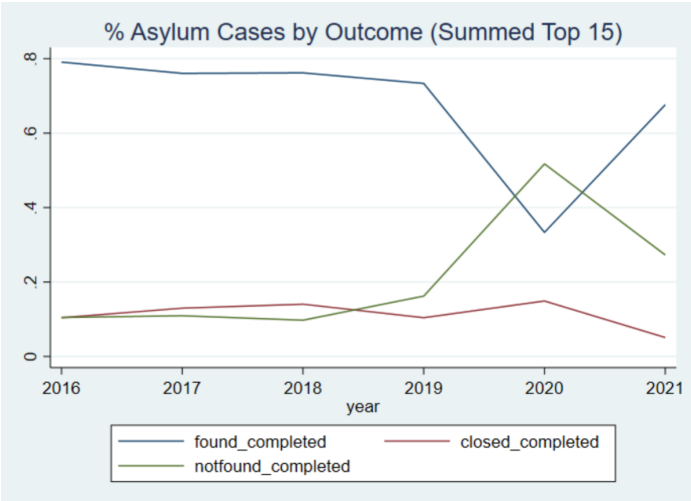

Fig. 1: Graph F

5 Discussion & Limitations

The most interesting result of this analysis is the estimate on the effect of the COVID-19 pandemic on credible fear outcomes. While the result at this stage suggests a strong impact, future project stages will need to consider more variables that may be correlated with the COVID-19 pandemic that fall into the error term in this analysis. Another interesting result to analyze in further stages is the potential association of global asylum-seeking populations and fluctuations in credible fear outcomes.

There are several notable limitations of the results at this stage of analysis. First, it is of concern that the variance-covariance difference matrix is not positive definite, as reported by the Hausman test results, which may be compromising the estimated coefficients and the reliability of the model's statistical inferences. Another limitation of this preliminary analysis is probable omitted variable bias given the limited number of independent variables included.

In the next stage of this project, these limitations will need to be addressed, particularly the lack of positive definiteness. Future analysis will also include additional

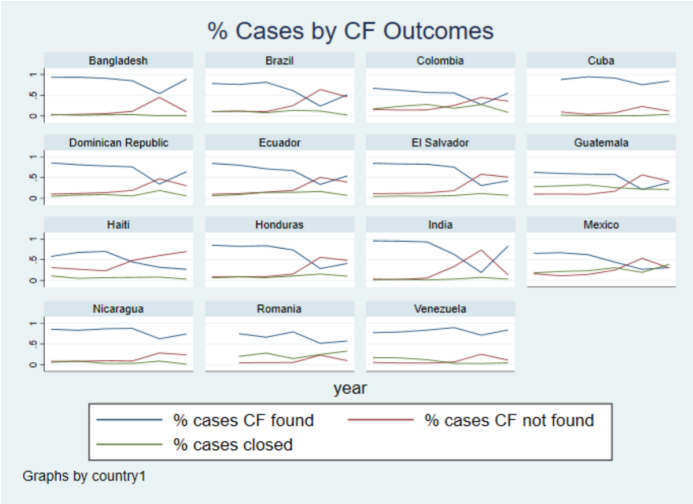

Fig. 2: Graph G

found_decided	Coefficient	Std. err.	z	P>|z|	[95% conf.	interval]
asylum_seekers	1.94e-07	1.14e-07	1.70	0.089	-2.95e-08	4.17e-07
Cen_Am	-.0171652	.065404	-0.26	0.793	-.1453547	.1110244
Europe	.1678995	.1048477	1.60	0.109	-.0375983	.3733972
South_Am	-.003312	.0693938	-0.05	0.962	-.1393214	.1326975
Asia	.0845243	.081171	1.04	0.298	-.074568	.2436166
covid_year	-.3232847	.0279922	-11.55	0.000	-.3781483	-.268421
_cons	.829214	.0524922	15.80	0.000	.7263311	.9320968
sigma_u	.07209984					
sigma_e	.11581891					
rho	.27929689	(fraction of variance due to u_i)				

Fig. 3: Regression Results

economic, political, and public health data to investigate more independent variables and mitigate potential omitted variable bias. Finally, DHS's "All Other Nationalities" category will be constructed from the full 1,000+ UNHCR observations to add an additional layer to the analysis.

Appendix A Additional Graphs

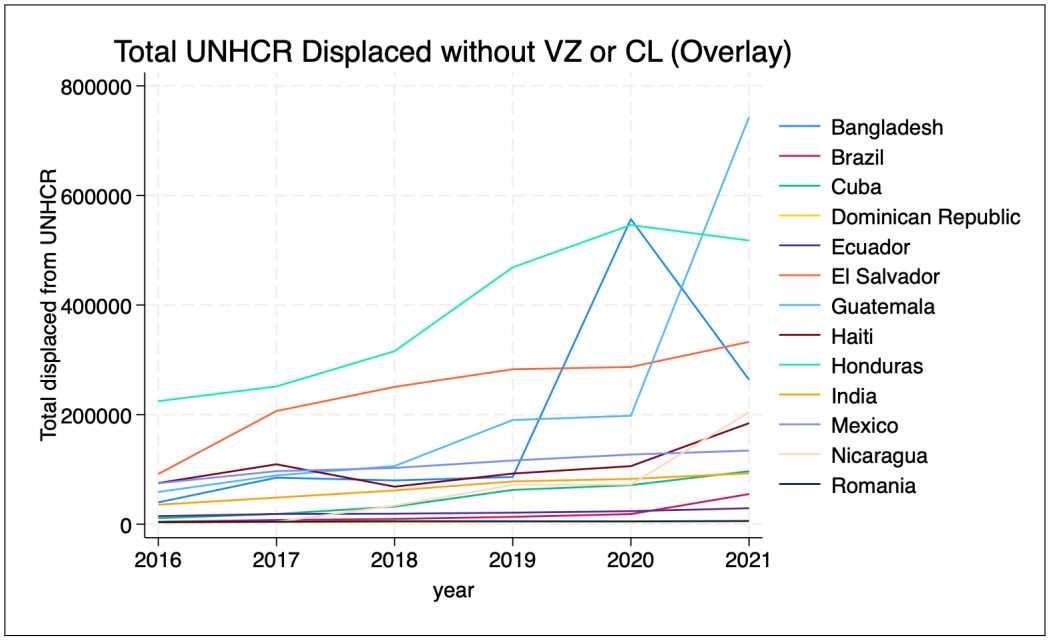

Fig. A1: Graph B.1

* Graph B: Without Venezuela or Colombia to look more closely at countries with smaller displaced populations

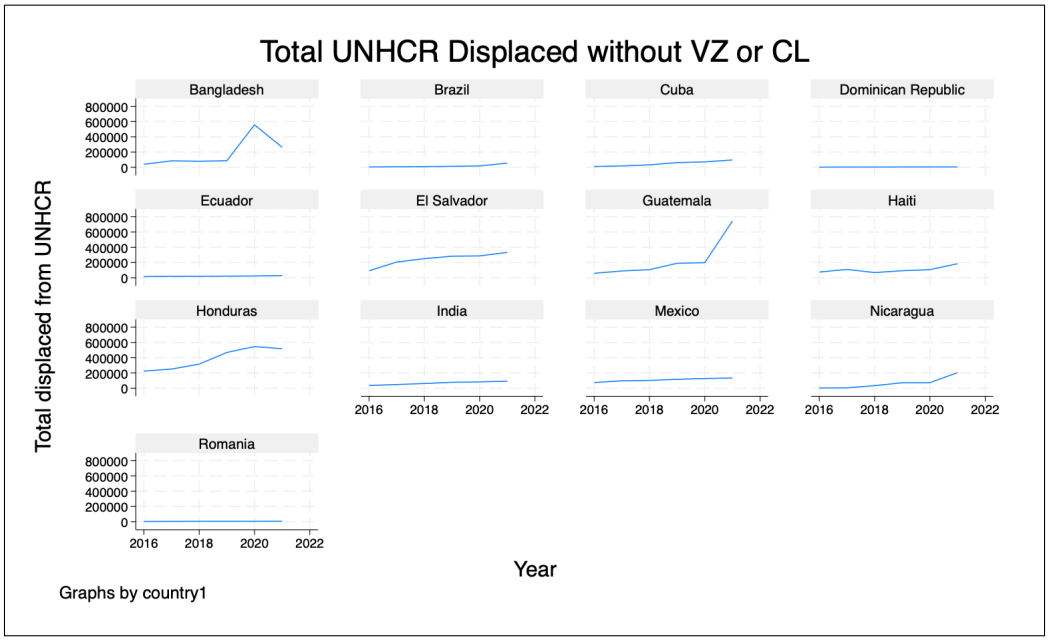

Fig. A2: Graph B

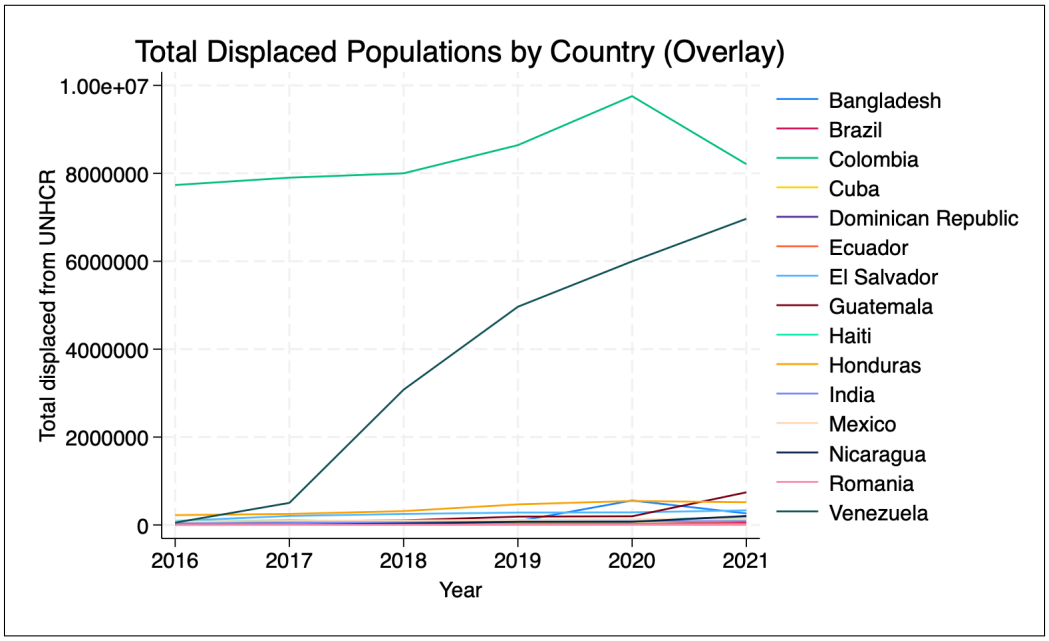

Fig. A3: Graph A.1

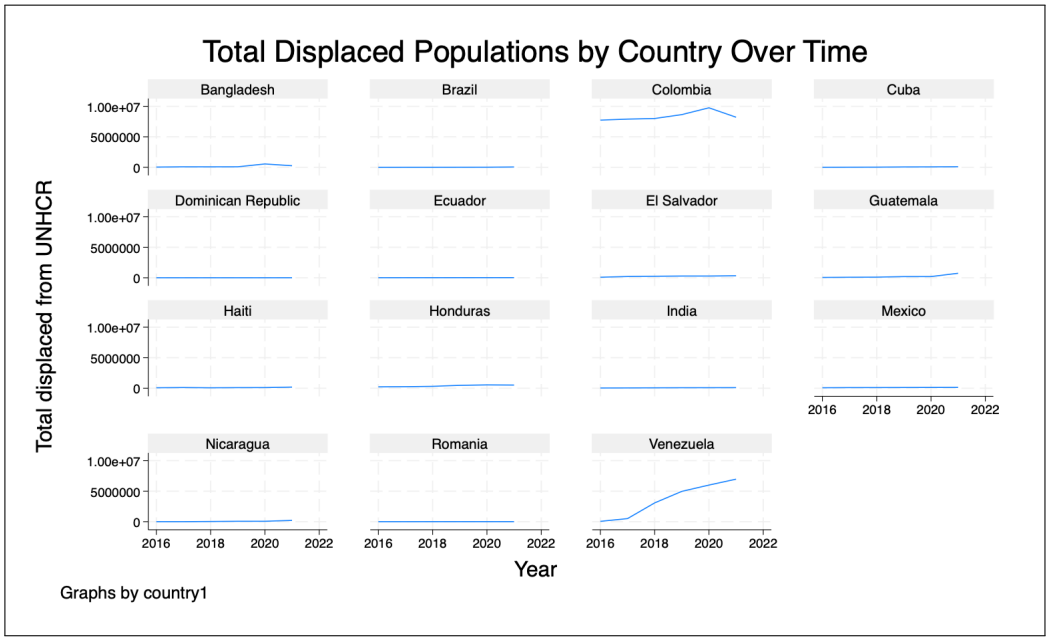

Fig. A4: Graph A

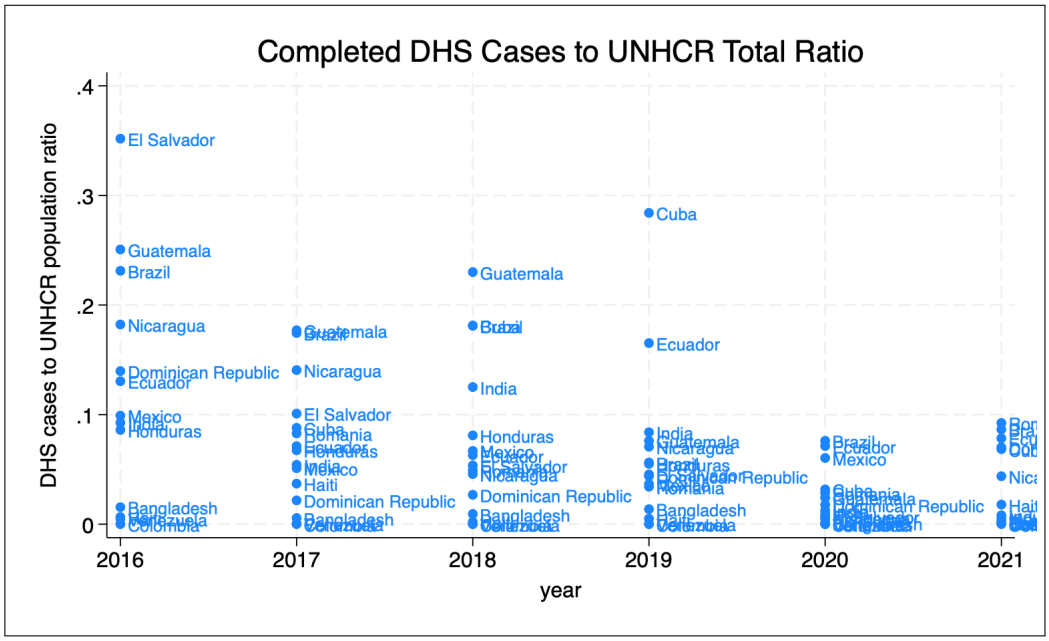

Fig. A5: Graph C

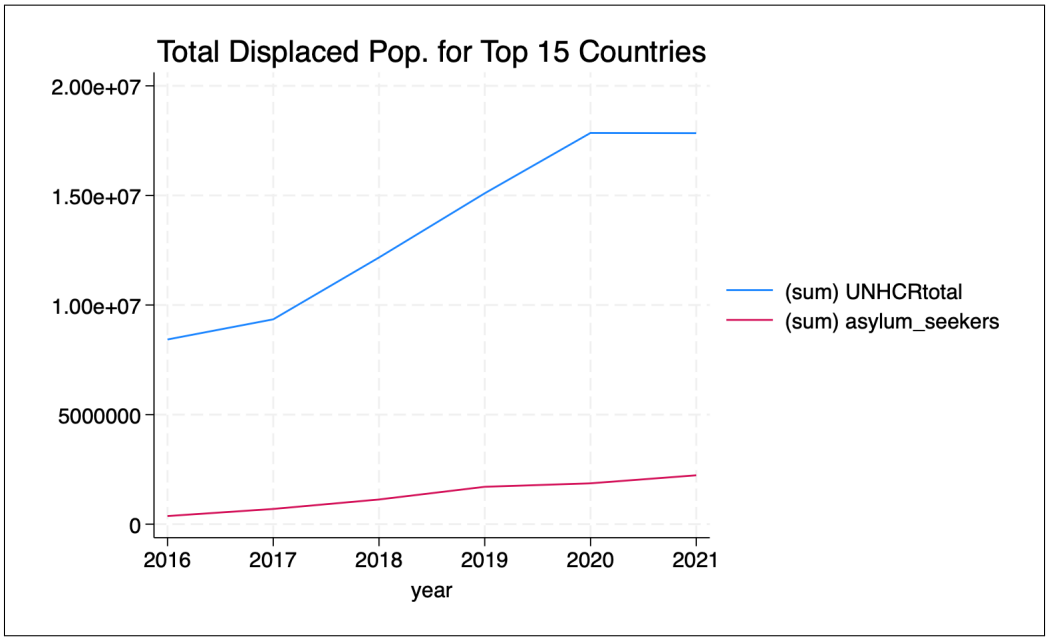

Fig. A6: Graph D

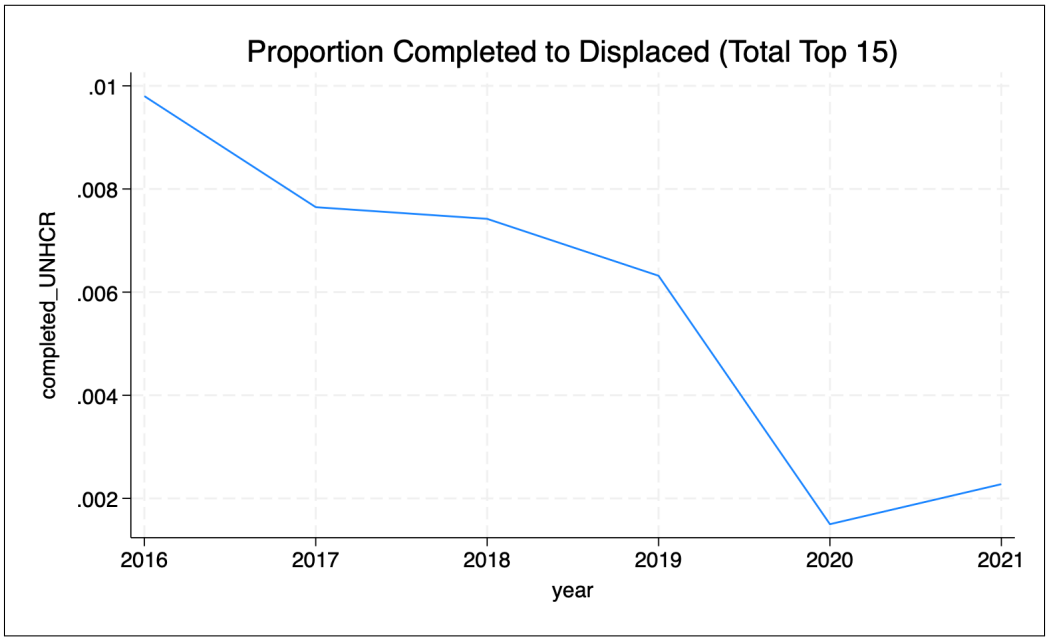

Fig. A7: Graph E

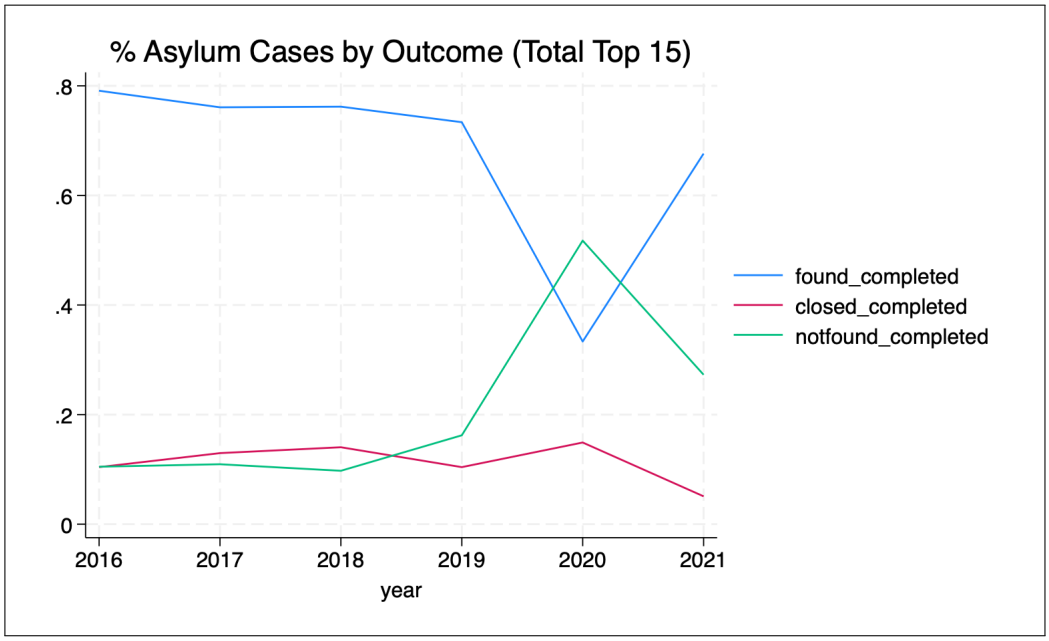

Fig. A8: Graph F

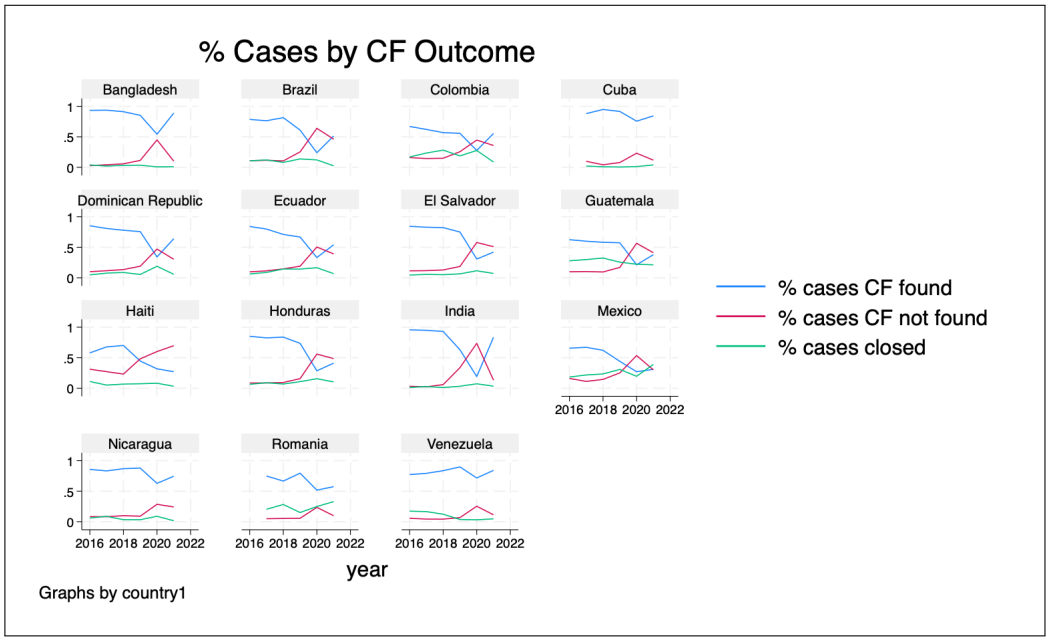

Fig. A9: Graph G

References

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[4] USCIS: USCIS Obtaining Asylum in the United States. https://www.uscis.gov/humanitarian/refugees-and-asylum/asylum/obtaining-asylum-in-the-united-states (2023)

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